

Attachment F

From: Ryan McBride [REDACTED]@UtahCounty.gov>
Sent: Wednesday, January 21, 2026 1:18 PM
To: Chad Grunander [REDACTED]@UtahCounty.gov>
Subject: FW: Legal Guidance Re: Media Statements

From: [REDACTED]@fbi.gov>
Sent: Thursday, October 9, 2025 7:20 PM
To: [REDACTED]@dojfbionmicrosoft.com
Cc: Ryan McBride [REDACTED]@UtahCounty.gov>; Robert Bohls [REDACTED]@fbi.gov>; [REDACTED]@fbi.gov>
Subject: FW: Legal Guidance Re: Media Statements

Team SU,

As the Tyler Robinson/Charlie Kirk assassination investigation was an all-hands effort, I am passing this information to the entire Salt Lake City/Billings Field Office team. If you are aware of additional personnel who assisted our team with this investigation, please forward to those individuals as well.

Please see below and attached for an important message from Ryan McBride, the General Crimes Division Chief for the Utah County Attorney's Office. As always, coordinate with our Public Affairs Specialist Sandra Barker before any media engagement on any matter. It is a good reminder to be mindful of any statements in your personal life and/or social media engagement regarding any FBI or related matters.

Thank you for your professionalism on this and all our cases.

Best regards,

[REDACTED]

SSA [REDACTED]
Chief Division Counsel
FBI Salt Lake City
Cell: [REDACTED]

[REDACTED]

From: Ryan McBride [REDACTED] <[REDACTED]@UtahCounty.gov>

Sent: Thursday, October 9, 2025 11:33 AM

To: Christopher Ballard [REDACTED] <[REDACTED]@utahcounty.gov>; [REDACTED] <[REDACTED]@americanfork.gov>;

[REDACTED] <[REDACTED]@byu.edu>; [REDACTED] <[REDACTED]@lehi-ut.gov>; [REDACTED] <[REDACTED]@lindoncity.org>; [REDACTED]
[REDACTED] <[REDACTED]@lonepeakpolice.com>; [REDACTED] <[REDACTED]@mapleton.org>; [REDACTED] <[REDACTED]@orem.gov>; [REDACTED] <[REDACTED]@payson.org>;
[REDACTED] <[REDACTED]@pgcity.org>; [REDACTED] <[REDACTED]@provo.org>; [REDACTED] <[REDACTED]@saalemcity.org>; [REDACTED] <[REDACTED]@santaquin.org>;
[REDACTED] <[REDACTED]@saratogaspringscity.com>; [REDACTED] <[REDACTED]@spanishfork.org>; [REDACTED] <[REDACTED]@springville.org>;
[REDACTED] <[REDACTED]@uvu.edu>; [REDACTED] <[REDACTED]@utahcounty.gov>; [REDACTED] <[REDACTED]@fbi.gov>; [REDACTED]
[REDACTED] <[REDACTED]@fbi.gov>; [REDACTED] <[REDACTED]@fbi.gov>

Cc: Jeff Gray [REDACTED] <[REDACTED]@utahcounty.gov>; Chad Grunander [REDACTED] <[REDACTED]@UtahCounty.gov>

Subject: [EXTERNAL EMAIL] - RE: Legal Guidance Re: Media Statements

All,

Judge Graf has issued a pre-trial publicity order which requires us to inform *all witnesses* of the duty to comply with rules about public statements which protect the defendant's right to a fair trial and unbiased jury.

While we will eventually identify all law enforcement witnesses we intend to call at trial, we cannot identify them yet. As a result, we are ask that your agency provide or read the attached letter to all officers who worked on the Charlie Kirk case.

Thank you.



Ryan McBride
General Crimes Division Chief
Utah County Attorney's Office
100 East Center St., Ste. 2100
Provo, Utah 84606
(801) 851-8026

From: Ryan McBride

Sent: Monday, September 15, 2025 9:25 AM

To: Christopher Ballard [REDACTED] <[REDACTED]@utahcounty.gov>; [REDACTED] <[REDACTED]@americanfork.gov>;

[REDACTED] <[REDACTED]@byu.edu>; [REDACTED] <[REDACTED]@lehi-ut.gov>; [REDACTED] <[REDACTED]@lindoncity.org>; [REDACTED]
[REDACTED] <[REDACTED]@lonepeakpolice.com>; [REDACTED] <[REDACTED]@mapleton.org>; [REDACTED] <[REDACTED]@orem.gov>; [REDACTED] <[REDACTED]@payson.org>;
[REDACTED] <[REDACTED]@pgcity.org>; [REDACTED] <[REDACTED]@provo.org>; [REDACTED] <[REDACTED]@saalemcity.org>; [REDACTED] <[REDACTED]@santaquin.org>;
[REDACTED] <[REDACTED]@saratogaspringscity.com>; [REDACTED] <[REDACTED]@spanishfork.org>; [REDACTED] <[REDACTED]@springville.org>;
[REDACTED] <[REDACTED]@uvu.edu>; [REDACTED] <[REDACTED]@utahcounty.gov>; [REDACTED] <[REDACTED]@fbi.gov>; [REDACTED] <[REDACTED]@fbi.gov>; [REDACTED] <[REDACTED]@fbi.gov>

Cc: Jeff Gray [REDACTED] <[REDACTED]@utahcounty.gov>; Chad Grunander [REDACTED] <[REDACTED]@UtahCounty.gov>

Subject: RE: Legal Guidance Re: Media Statements

All,

As media continues to cover this case and we are seeing a lot of comments by officials, I want to reiterate the importance of the rules governing media relations from the State and Government. I have once again attached our media relations letter. I have also included some clarifications below.

The comment to Rule 3.6 of the rules of professional responsibility (applicable to some beyond the prosecutor via rule 3.8) reads as follows:

[5] There are certain subjects that are more likely than not to have a material prejudicial effect on a proceeding, particularly when they refer to a criminal matter or any other proceeding that could result in incarceration. These subjects relate to:

- (i) the character, credibility, reputation or criminal record of a suspect in a criminal investigation or witness, or the identity of a witness, or the expected testimony of a party or witness;
- (ii) in a criminal case or proceeding that could result in incarceration, the possibility of a plea of guilty to the offense or the existence or contents of any confession, admission or statement given by a defendant or suspect ***or that person's refusal or failure to make a statement***; (emphasis is mine)
- (iii) the performance or results of any examination or test or the refusal or failure of a person to submit to an examination or test, or the identity or nature of physical evidence expected to be presented;
- (iv) any opinion as to the guilt or innocence of a defendant or suspect in a criminal case or proceeding that could result in incarceration; or
- (v) information that the lawyer knows or reasonably should know is likely to be inadmissible as evidence in a trial and that would, if disclosed, create a substantial risk of prejudicing an impartial trial.

The rule in its entirety is available here: <https://legacy.utcourts.gov/rules/view.php?type=ucja&rule=13-3.6>. Please thoroughly consult the rule before making any public statement.

Remember that information contained in the public record is fair game. Officials are on firm ground when they rely on the booking probable cause statement and, in the future, on the probable cause statement that will be included in the Criminal Information. With this in mind, I am asking that your teams carefully consider the parameters outlined in the rule above and my attached letter.

I know the public has an extraordinary interest in this case and leaders have the duty to ensure our citizenry know they are safe from the shooter. The leaders of our state and country have every right and expectation to speak about this case. But it has to be done right. We will likely have to deal with every public statement via time-consuming litigation that is made outside of the parameters we have explained. Improper statements will at the least cost us time in getting to trial. At worst, they could have much graver consequences to the case.

For now, the safest course is to hold off on commenting about specific evidence not yet included in the public record until my office makes them part of the public record in the filing of the information, after we have time to review the evidence and reports to ensure their reliability and admissibility. This will avoid risk in the criminal prosecution.

Finally, I don't know who the PIOs are for your organizations. I am relying on you to pass this information up or down the chain of command to the appropriate people.

Thank you



Ryan McBride
General Crimes Division Chief
Utah County Attorney's Office
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Provo, Utah 84606
(801) 851-8026

From: Christopher Ballard [REDACTED] [\[REDACTED\]@utahcounty.gov](mailto:[REDACTED]@utahcounty.gov)

Sent: Friday, September 12, 2025 7:54 AM

To: [REDACTED] [\[REDACTED\]@americanfork.gov](mailto:[REDACTED]@americanfork.gov); [REDACTED] [\[REDACTED\]@byu.edu](mailto:[REDACTED]@byu.edu); [REDACTED] [\[REDACTED\]@lehi-ut.gov](mailto:[REDACTED]@lehi-ut.gov); [REDACTED] [\[REDACTED\]@lindoncity.org](mailto:[REDACTED]@lindoncity.org); [REDACTED] [\[REDACTED\]@lonepeakpolice.com](mailto:[REDACTED]@lonepeakpolice.com); [REDACTED] [\[REDACTED\]@mapleton.org](mailto:[REDACTED]@mapleton.org); [REDACTED] [\[REDACTED\]@orem.gov](mailto:[REDACTED]@orem.gov); [REDACTED] [\[REDACTED\]@payson.org](mailto:[REDACTED]@payson.org); [REDACTED] [\[REDACTED\]@pgcity.org](mailto:[REDACTED]@pgcity.org); [REDACTED] [\[REDACTED\]@provo.org](mailto:[REDACTED]@provo.org); [REDACTED] [\[REDACTED\]@saalemcity.org](mailto:[REDACTED]@saalemcity.org); [REDACTED] [\[REDACTED\]@santaquin.org](mailto:[REDACTED]@santaquin.org); [REDACTED] [\[REDACTED\]@saratogaspringscity.com](mailto:[REDACTED]@saratogaspringscity.com); [REDACTED] [\[REDACTED\]@spanishfork.org](mailto:[REDACTED]@spanishfork.org); [REDACTED] [\[REDACTED\]@springville.org](mailto:[REDACTED]@springville.org); [REDACTED] [\[REDACTED\]@uvu.edu](mailto:[REDACTED]@uvu.edu); [REDACTED] [\[REDACTED\]@utahcounty.gov](mailto:[REDACTED]@utahcounty.gov); [REDACTED] [\[REDACTED\]@fbi.gov](mailto:[REDACTED]@fbi.gov)

Cc: Jeff Gray [REDACTED] [\[REDACTED\]@utahcounty.gov](mailto:[REDACTED]@utahcounty.gov); Ryan McBride [REDACTED] [\[REDACTED\]@UtahCounty.gov](mailto:[REDACTED]@UtahCounty.gov); Chad Grunander [REDACTED] [\[REDACTED\]@UtahCounty.gov](mailto:[REDACTED]@UtahCounty.gov)

Subject: Legal Guidance Re: Media Statements

Chiefs and others,

Please carefully review the attached letter regarding ethical rules that bind prosecutors and, by extension, law enforcement agencies in making statements to the media.

Please ensure that your PIO's and other officers strictly adhere to this guidance, especially in making statements regarding the Charlie Kirk shooting at UVU.

Christopher D. Ballard



General Counsel / Chief of Staff
Public Information Officer
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UTAH COUNTY ATTORNEY

Jeffrey S. Gray, Utah County Attorney

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Christopher D. Ballard, Chief of Staff

Christine Scott, Major Crimes Division Chief

Ryan McBride, General Crimes Division Chief

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100 East Center Street, Suite 2100

Provo, Utah 84606

p: 801.851.8026

f: 801.851.8051

Date: October 9, 2025

Re: Public statements re Tyler Robinson/Charlie Kirk

To all witnesses in the Charlie Kirk case,

The Utah County Attorney's Office has an ethical obligation to "exercise reasonable care to prevent investigators, law enforcement personnel," and others from making public comments which "have a substantial likelihood of materially prejudicing" the trial process in criminal cases. Judge Graf emphasized this duty in a court order. The point of the rules and of the judge's order is to ensure the defendant is afforded a fair trial by an impartial jury. I am writing to satisfy our obligation regarding statements to the media.

At the outset, you should know that you have no obligation to speak with the media. Your agency likely has policies controlling media and public statements – abide by those policies in this case. If you speak with the media or public, there are certain topics that may be more likely to prejudice the jury pool, and these topics should be avoided in any statement. These topics include:

- Statements about the defendant's character (like calling him evil, depraved, or insulting names);
- Statements about the defendant's criminal history;
- Opinions about the defendant's guilt or proper punishment. Remember, the question of guilt has not been decided yet and the accused is presumed innocent until he is proven guilty;
- Statements about any constitutional rights the defendant has asserted – like the right to remain silent, the right to an attorney, and the right to trial. These are rights afforded to all citizens and no one should be punished for asserting them; and
- Any other statements which could risk violating the defendant's right to a fair trial.

Prejudicial statements made to the media and public have created significant legal issues in high profile cases – which can cause the case to be moved to another county, sanctions on prosecutors, and even dismissal. We want to avoid these issues in this case. So please abide by this guidance. Feel free to contact our office with any questions about this topic. We also encourage you to consult with an attorney if you choose to speak to the media.

Sincerely,

/s/ Ryan McBride



UTAH COUNTY ATTORNEY

Jeffrey S. Gray, Utah County Attorney

Chad E. Grunander, Chief Deputy

Christopher D. Ballard, Chief of Staff

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